

25NWLC14050 25NWLC14050

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-08-24

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Case Number: 25NWLC14050 Hearing Date: August 24, 2026 Dept: 25

HEARING DATE: Mon., August 24, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Westlake Services, LLC v. Richland

Motors, Inc., et al.

COMPL. FILED: 03-21-25

CASE NUMBER: 25NWLC14050

NOTICE: OK

PROCEEDINGS: MOTION FOR ORDER FOR TERMINATING SANCTIONS,

STRIKING DEFENDANT'S ANSWER AND ENTERING DEFAULT; REQUEST FOR MONETARY

SANCTIONS IN THE AMOUNT OF \$1,873.82

MOVING PARTY: Plaintiff Westlake Services, LLC

RESP. PARTY: None

MOTION FOR

TERMINATING SANCTIONS

(Code Civ. Proc., §§ 2023.030, 2030.290, 2031.320)

TENTATIVE RULING:

The Court GRANTS Westlake

Services, LLC's motion for terminating sanctions. The Court STRIKES Marusa's answer, and he is

now in default. The Court also awards

Westlake \$1,873.82 in monetary sanctions.

Westlake is to

give notice.

SERVICE:

☒ Proof

of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct

Address (CCP §§ 1013, 1013a) OK

☒ 16/21

Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of August 19, 2026 ☐ Late ☒

None

REPLY: None

filed as of August 19, 2026 ☐ Late ☒

None

ANALYSIS:

Richard Marusa guaranteed a contract between

Westlake Services, LLC and Richland Motors, Inc. Richland breached the contract, so Westlake

sued Richland and Marusa. Richland

defaulted, Marusa answered, and Westlake propounded discovery. Marusa failed to provide satisfactory

responses to its discovery requests, so Westlake moved successfully to compel

those responses. On February 5, 2026,

this Court granted Westlake's motion and ordered Marusa to pay Westlake

\$1,345.50 in sanctions. The sanctions

were to be paid within 30 days, but the Court's order omitted a deadline for

Marusa to provide the required discovery responses. Marusa neither provided discovery responses

nor paid Westlake the \$1,345.50 that the Court ordered.

Westlake therefore

moved for terminating sanctions in April 2026.

The Court granted the motion in part, ordering Marusa to respond to the

outstanding discovery requests within 20 days of the May 28, 2026 order, immediately

pay Westlake the \$1,345.50 previously ordered, and pay additional sanctions in

the amount of \$1,873.82 payable within 30 days of the order. The Court warned Marusa if he failed to

comply that "he likely faces the imposition of terminating sanctions." The Court's Judicial Assistant and Westlake provided

notice of the ruling to Marusa, and as of now, Marusa has neither provided

discovery responses nor paid Westlake the total of \$3,219.32 that the Court ordered.

Westlake therefore again moves to have Marusa's answer stricken and his default entered.

Westlake also requests monetary sanctions for having to file this motion. Marusa has not opposed the motion or given any indication of compliance with the previous order—or interest in defending himself in this matter.

A court has the power to impose monetary, evidence, issue, or terminating sanctions on a party who fails to respond to discovery or fails to obey a court order to provide discovery. (Code Civ. Proc., § 2023.010, subds. (d), (g); id. § 2023.030, subds. (a)–(d).) Terminating sanctions are often appropriate only as a last resort, either when a party fails to respond to escalating measures of coerced compliance or when its discovery misconduct is so bad that lesser sanctions would have the Court and the party seeking discovery running a fool's errand. (City of Los Angeles v. PricewaterhouseCoopers, LLP (2024) 17 Cal.5th 46, 63; Lopez v. Watchtower Bible & Tract Society of N.Y., Inc. (2016) 246 Cal.App.4th 566, 604.)

Given that Marusa has again failed to comply with the Court's order, the Court GRANTS

Westlake's motion for terminating sanctions.

The Court STRIKES Marusa's answer, and he is now in default. The Court also awards Westlake an additional

\$1,873.82 in monetary sanctions for causing Westlake to file this motion, to be

paid within 30 days of this order. (Code

Civ. Proc., § 2030.290, subd. (c); id. § 2031.300, subd. (c).) The Court VACATES the trial date in this

matter, and ORDERS Westlake to SHOW CAUSE, on Wednesday, October 28, 2026 at

9:30 a.m. in Department 25 of the Spring Street Courthouse, re: the entry of a default judgment.

Westlake

is to give notice.